

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lily Kim	Team: Squad #6	CCRB Case #: 202101338	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/20/2021 2:03 PM	Location of Incident: Ralph Avenue and Avenue H	Precinct: 63	18 Mo. SOL 7/20/2022	EO SOL 7/20/2022	
Date/Time CV Reported Tue, 03/02/2021 2:23 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 03/02/2021 2:23 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Harry Cruz	17669	960407	063 PCT
2. LT Brian Schulman	00000	939435	NBSI MAJOR
3. POM Timothy Commander	06072	960385	063 PCT
4. PO Michael Panetta	13332	957004	063 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Thomas Matera	14677	960900	063 PCT
2. POM Anthony Caravana	04908	963432	063 PCT

Officer(s)	Allegation	Investigator Recommendation
A.PO Michael Panetta	Abuse: Police Officer Michael Panetta stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
B.PO Michael Panetta	Abuse: Police Officer Michael Panetta questioned § 87(2)(b)	
C.LT Brian Schulman	Abuse: Lieutenant Brian Schulman stopped § 87(2)(b)	
D.POM Timothy Commander	Abuse: Police Officer Timothy Commander frisked § 87(2)(b)	
E.POM Harry Cruz	Abuse: Police Officer Harry Cruz frisked § 87(2)(b)	
F.POM Harry Cruz	Abuse: Police Officer Harry Cruz searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
G.PO Michael Panetta	Abuse: Police Officer Michael Panetta searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
H.PO Michael Panetta	Abuse: Police Officer Michael Panetta failed to provide § 87(2)(b) with a business card.	
I.POM Timothy Commander	Abuse: Police Officer Timothy Commander failed to provide § 87(2)(b) with a business card.	
J.POM Harry Cruz	Abuse: Police Officer Harry Cruz failed to provide § 87(2)(b) with a business card.	
K.LT Brian Schulman	Abuse: Lieutenant Brian Schulman failed to provide § 87(2)(b) with a business card.	
§ 87(2)(g), § 87(4-b)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On March 2, 2021, § 87(2)(b) provided a statement for CCRB Case #§ 87(2)(b) and reported this incident over the phone, on behalf of § 87(2)(b). § 87(2)(b) was not present for this incident.

On January 20, 2021, at approximately 2:00 p.m., § 87(2)(b) stopped his vehicle behind an unmarked vehicle at a red light at the intersection of Ralph Avenue and Avenue K, in Brooklyn.

§ 87(2)(b) was in the right lane, about to make a right turn. One unmarked black Ford SUV with tinted windows was behind § 87(2)(b) and another was on § 87(2)(b)'s left. Police Officer Michael Panetta, Police Officer Timothy Commander, Police Officer Harry Cruz, Police Officer Thomas Matera, Police Officer Anthony Caravana and Lieutenant Brian Schulman of the 63rd Precinct exited the vehicles. PO Panetta approached the driver's seat (**Allegation A: Abuse of Authority,** § 87(2)(g)) PO Panetta allegedly asked for § 87(2)(b)'s identification (**Allegation B: Abuse of Authority,** § 87(2)(g)). Lt. Schulman instructed PO Cruz to tell § 87(2)(b) to exit and step to the rear of the vehicle (**Allegation C: Abuse of Authority,** § 87(2)(g)). PO Commander told § 87(2)(b) to exit the vehicle and patted him down (**Allegation D: Abuse of Authority,** § 87(2)(g)). PO Cruz patted § 87(2)(b) down (**Allegation E: Abuse of Authority,** § 87(2)(g)). PO Cruz and PO Panetta searched the vehicle (**Allegations F and G: Abuse of Authority,** § 87(2)(g)). § 87(2)(b) asked why he had been stopped multiple times throughout the incident and was not given an answer. PO Panetta, PO Commander, PO Cruz, and Lt. Schulman failed to provide business cards to § 87(2)(b) or § 87(2)(b). (**Allegations H-K: Abuse of Authority,** § 87(2)(g), § 87(2)(g), § 87(4-b))

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

This incident did not result in any arrests or summonses.

Six BWC videos were obtained of this incident.

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Michael Panetta stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B—Abuse of Authority: Police Officer Michael Panetta questioned § 87(2)(b)

At the 1:00 mark in PO Panetta's BWC (**BR 01**), PO Panetta approaches § 87(2)(b)'s window, and § 87(2)(b) rolls his window down. PO Caravana's vehicle is in front of § 87(2)(b)'s, with the lights activated. PO Panetta asks where § 87(2)(b) is headed. PO Panetta says he's "just saying what up." At the 1:24 mark, PO Panetta says he knows who § 87(2)(b) is. PO Panetta takes § 87(2)(b)'s ID and hands it to PO Caravana. All officers are in uniform.

PO Cruz's BWC (**BR 02**) and Lt. Schulman's BWC (**BR 03**) both open with each of them in the front passenger seat of police vehicles.

§ 87(2)(b) testified (**BR 04**) that on January 20, 2021, at approximately 2:00 p.m., he stopped at a red light behind an unmarked grey Ford sedan at the intersection of Ralph Avenue and Avenue K, heading toward Flatlands Avenue, in Brooklyn. § 87(2)(b) was in the right lane, about to make a right turn. § 87(2)(b) drove a rented grey 2019 BMW 338i with § 87(2)(b) in the front passenger seat. One unmarked black Ford SUV with tinted windows was behind § 87(2)(b) and another was on § 87(2)(b)'s left. The unmarked grey Ford started to back up toward § 87(2)(b)'s bumper,

and at first he did not realize that it was a police vehicle, so he honked a few times to let the driver know they were getting close to his vehicle. § 87(2)(b) stopped honking when he realized it was a police vehicle, because PO Caravana exited the unmarked grey Ford. § 87(2)(b) did not commit any violations while on the road and the vehicle did not have any issues because it was a rental and relatively new. § 87(2)(b) was smoking a tobacco cigarette, but he did not smoke marijuana, and the officers did not comment on any marijuana. PO Panetta asked for § 87(2)(b) and § 87(2)(b)'s identification. § 87(2)(b) gave his permit to PO Panetta, § 87(2)(b) handed him her ID.

PO Panetta testified (**BR 05**) that he was patrolling in a caravan of two police vehicles in the 63rd Precinct when he observed § 87(2)(b) fail to signal a lane change near Ralph Avenue and Avenue H. He did not remember how far he was from the vehicle that had changed lanes, but it was within a block. PO Panetta activated his sirens and lights to stop the vehicle for failing to signal. Inside the police vehicle, there was no discussion of the violation. He did not remember if he observed any other violations. The driver, § 87(2)(b) immediately pulled over. PO Panetta, PO Cruz, PO Commander, PO Caravana, and Lt. Schulman exited their police vehicles. PO Panetta did not remember where the other police vehicle was parked. PO Panetta approached the stopped vehicle. PO Panetta did not know whose decision it was to end the stop without issuing a summons.

§ 87(2)(g)

§ 87(2)(b). PO Cruz's vehicle was approximately one car-length behind § 87(2)(b)'s vehicle when the failure to signal was first observed. PO Cruz did not remember if he directly observed it, or if PO Panetta pointed it out to him. Lt. Schulman was also in PO Cruz and PO Panetta's vehicle, in the backseat. PO Panetta, the operator, proceeded to pull § 87(2)(b) over. PO Cruz did not remember if there was any discussion between himself, PO Panetta, and Lt. Schulman in the vehicle while pulling § 87(2)(b) over, regarding the vehicle stop. Lt. Schulman did not instruct PO Panetta or PO Cruz to take any particular action during the stop. PO Cruz did not observe any other vehicular violations committed by § 87(2)(b).

Lt. Schulman testified (**BR 07**) that he was sitting in the front passenger seat of a police vehicle in traffic when he observed a vehicle stop being conducted by at least one police vehicle a couple vehicles ahead of him. Lt. Schulman did not remember if he was traveling in a caravan with the other police vehicle(s) involved, or if he communicated with the other officers over the radio. Lt. Schulman did not remember who was in his vehicle with him. Lt. Schulman did not initiate the stop, but he observed the officers standing outside their vehicles, which indicated that a vehicle stop occurred, so he walked up to provide supervisory support. It was the officers' discretion in deciding not to issue a summons for this incident.

PO Caravana testified (**BR 08**) that he did not know the reason for the vehicle stop and did not directly observe any violations committed. The vehicle windows were open, and when PO Caravana stood by the rear driver's side of the vehicle, he smelled a strong odor of burnt marijuana. It was clear that the odor was emanating from § 87(2)(b)'s vehicle. The odor did not change (become weaker or stronger) during the incident. PO Caravana was present when the vehicle stop was initiated, but he was in a different vehicle with PO Commander, with PO Commander operating the vehicle. PO Caravana's vehicle was initially behind the unmarked vehicle that pulled § 87(2)(b) over, but then PO Commander pulled the vehicle in front of § 87(2)(b)'s vehicle when he was pulled over. PO Caravana exited his vehicle upon stopping and walked over to the driver's side rear window.

§ 87(2)(g)

§ 87(2)(b). PO Commander did not remember if he directly observed § 87(2)(b) failing to signal his lane change, or if he learned that this violation was the reason for the stop at a later point.

When PO Commander observed the vehicle being pulled over, he pulled his vehicle in front of § 87(2)(b)'s vehicle. PO Commander did not observe any other violations being committed.

None of the officers prepared memo book entries or stop and frisk reports. § 87(2)(g)

It is undisputed officers stopped § 87(2)(b)'s vehicle. BWC does not capture what led up to the vehicle stop, as the officers were all in their vehicles. § 87(2)(b) alleged that he was already at a red light when an unmarked police vehicle began to back up toward him, and that he had not committed any VTL violations. § 87(2)(b) responded by honking, and the vehicle stop began when the officers exited their vehicles. PO Caravana and Lt. Schulman stated that they did not know the reason for the stop, but the other officers, PO Commander, PO Panetta, and PO Cruz, testified that § 87(2)(b) failed to signal a lane change, which led to the stop. BWC shows that officers did not tell § 87(2)(b) that the reason for the stop was the failure to signal violation.

§ 87(2)(g)

There was no documentation of this stop, such as a stop report and memo book entries, and this incident did not result in an arrest or summons.

PO Panetta's BWC audio was on when § 87(2)(b) opened his window to speak with PO Panetta, so it captures the entire conversation between PO Panetta and § 87(2)(b). PO Panetta did not speak to § 87(2)(b) or ask for § 87(2)(b)'s ID.

§ 87(2)(g)

§ 87(2)(g)

Allegation C—Abuse of Authority: Lieutenant Brian Schulman stopped § 87(2)(b)

Allegation D—Abuse of Authority: Police Officer Timothy Commander frisked § 87(2)(b)

Allegation E—Abuse of Authority: Police Officer Harry Cruz frisked § 87(2)(b)

Allegation F—Abuse of Authority: Police Officer Harry Cruz searched the vehicle in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation G—Abuse of Authority: Police Officer Michael Panetta searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

At the 2:08 mark in PO Commander's BWC (**BR 10**), PO Commander asks § 87(2)(b) to step out of the vehicle. As soon as § 87(2)(b) steps out, he states that he has marijuana and shows them his marijuana card for it. An officer, who is out of the camera frame, tells him to put it back. At the 2:20 mark, PO Commander pats his legs down and under his hood. At the 2:33 mark, § 87(2)(b) informs PO Commander that he has a small knife in his jacket chest pocket. PO Commander removes the knife from § 87(2)(b)'s hoodie pocket and places it on top of the car. § 87(2)(b) exits the vehicle from the other side. At the 2:43 mark, § 87(2)(b) walks to the rear of the vehicle. At the 2:46 mark, PO Commander walks to the back of the vehicle.

At the 2:04 mark in Lt. Schulman's BWC, Lt. Schulman's reflection is in the car window. He nods to PO Commander and PO Caravana, and PO Commander opens the driver's door for § 87(2)(b) to exit the vehicle. At the 2:22 mark, Lt. Schulman tells PO Cruz to have § 87(2)(b) step out of the

vehicle. At the 2:34 mark, § 87(2)(b) steps out and PO Cruz pats her down.

At the 2:54 mark in PO Cruz's BWC, § 87(2)(b) steps out of the vehicle. At the 3:08 mark, PO Cruz asks § 87(2)(b) to exit the vehicle. § 87(2)(b) responds that she is in a court hearing on her phone. PO Cruz asks her to step out and says she can stay on her phone. At the 3:20 mark, PO Cruz pats § 87(2)(b)'s hoodie pocket and her sweatpants pockets. § 87(2)(b) walks to the rear of the vehicle. At the 3:34 mark, PO Cruz enters the vehicle on the passenger side. PO Cruz searches the front and back seat areas on the passenger side. PO Cruz checks the pockets of a jacket and removes keys from a pocket.

At the 3:40 mark in PO Panetta's BWC, PO Panetta enters the driver's side and searches the vehicle. At the 4:09 mark, PO Panetta searches the backseat and feels the pockets of a jacket. At the 6:35 mark, PO Panetta and PO Cruz search the trunk. PO Panetta lifts the trunk bed to look underneath.

§ 87(2)(b) testified that PO Panetta told him to exit the vehicle, and § 87(2)(b) complied. PO Commander patted § 87(2)(b) down around his pockets. § 87(2)(b) wore a hoodie with a single front pocket and sweatpants with two front pockets and a back pocket. His pants pockets were empty. PO Commander squeezed the hoodie pocket because § 87(2)(b) had some marijuana in it. PO Commander did not enter the pocket or remove anything from the pocket. § 87(2)(b) informed PO Commander that it was marijuana and offered the officers his medical marijuana card. No one took the card from him or looked at it. § 87(2)(b) testified that when he was told to exit the vehicle by PO Panetta, PO Cruz told § 87(2)(b) to exit the vehicle as well. PO Cruz patted § 87(2)(b) down. § 87(2)(b) did not remember what § 87(2)(b) wore. PO Cruz did not take anything from § 87(2)(b)'s person. § 87(2)(b) testified that PO Panetta entered and searched the vehicle, first on the driver's side, and then the passenger's side. § 87(2)(b) was not permitted to turn around, so he did not see anything. PO Panetta searched the vehicle for approximately five minutes, and he returned to the rear of the vehicle. In a follow-up call (BR 11), § 87(2)(b) stated that he was carrying approximately 7g of marijuana in a high quality "smell-proof" bag. § 87(2)(b) was unable to state what material the bag was made of, but it may have been some kind of plastic. An odor of marijuana could not be detected through the bag, and § 87(2)(b)'s vehicle did not smell like marijuana.

PO Commander testified that as he approached on foot, he smelled an odor of marijuana when he got close to the open driver side window. PO Commander did not know if it was a burnt or unburnt odor, and he did not remember how strong the odor was. Due to the odor of marijuana, § 87(2)(b) and § 87(2)(b) were asked to step out of the vehicle. After reviewing his BWC, PO Commander acknowledged that he frisked § 87(2)(b) and removed the knife from his pocket. PO Commander acknowledged that he began patting § 87(2)(b) down before the mention of the knife, and that he did not have a specific reason to suspect that § 87(2)(b) might be armed until § 87(2)(b) mentioned having a knife. PO Commander did not observe any bulges or other visual signs that § 87(2)(b) was in possession of weapons. PO Commander did not remember what kind of knife § 87(2)(b) had, or how big it was. PO Commander only remembered that § 87(2)(b) stated that he had a "small knife."

Lt. Schulman testified that he did not know why § 87(2)(b) and § 87(2)(b) were brought to the back of the vehicle other than for general reasons such as officer safety while officers spoke with the civilians. At some point, there was a mention of marijuana, but Lt. Schulman did not remember when, where, or how he became aware of the marijuana. Lt. Schulman was not sure if he saw or heard something, or if a police officer informed him. Lt. Schulman did not remember if he smelled an odor of marijuana. After reviewing his BWC, Lt. Schulman stated that § 87(2)(b) was

specifically asked to exit the vehicle to keep § 87(2)(b) and § 87(2)(b) together at the back of the vehicle for safety reasons. Lt. Schulman did not remember any other observations he made that specifically gave the officers reason to remove § 87(2)(b) from the vehicle. Lt. Schulman confirmed, after watching BWC, that he did not observe any specific indications that there were weapons present or any specific safety risks.

PO Cruz testified that he did not smell the odor of marijuana because the window was closed on the passenger side. PO Cruz did not remember if it was PO Panetta or another officer who smelled the odor of marijuana and alerted the other officers. PO Cruz was alerted to the odor of marijuana as § 87(2)(b) stepped out of the vehicle. The officers collectively decided to have the occupants of the vehicle step out, without receiving an order from Lt. Schulman. When § 87(2)(b) and § 87(2)(b) exited the vehicle, they were both patted down to make sure they did not have any weapons on them. PO Cruz patted down § 87(2)(b)'s hoodie pockets and pants pockets from the outside. PO Cruz did not detect anything. PO Cruz did not have an individualized suspicion that she was armed, but this was protocol for general safety during a vehicle stop. Nothing caused PO Cruz to believe there may be weapons in the vehicle. PO Cruz testified that after § 87(2)(b) went to the rear of the vehicle, PO Cruz searched the front and rear passenger sides of the vehicle, as well as the trunk. PO Panetta searched the vehicle as well. PO Cruz specifically searched the vehicle for marijuana, as there was an odor. Marijuana was not ultimately recovered.

PO Panetta testified that he smelled an odor of marijuana when § 87(2)(b) opened the vehicle window. PO Panetta did not recall observing marijuana. He did not recall whether the marijuana smelled as if it was burnt or not. § 87(2)(b) provided his driver's license. PO Panetta asked § 87(2)(b) and § 87(2)(b) to step out of their vehicle because he smelled marijuana and because he was going to search the vehicle. § 87(2)(b) and the § 87(2)(b) complied. Prior to this, PO Panetta believed that he was the only officer who had spoken with § 87(2)(b). PO Panetta searched the front driver side, rear, and the trunk of the vehicle for drugs. He did not have any indication that there was other contraband to search for. He did not recall if he opened any compartments in the car. He did not recall whether he searched in any bags. Nothing was recovered from the civilians or the vehicle. The incident concluded in a warning.

PO Caravana testified that when he stood by the rear driver's side of the vehicle, he smelled a strong odor of burnt marijuana. It was clear that the odor was emanating from § 87(2)(b)'s vehicle. The odor did not become weaker or stronger during the incident. PO Caravana did not remember if any marijuana was recovered from either § 87(2)(b) or § 87(2)(b). PO Caravana did not have any suspicion that § 87(2)(b) or § 87(2)(b) had any other contraband in the vehicle or on their person.

A Terry Stop/Level 3 encounter is any encounter between a civilian and a uniformed member of the service in which a reasonable person would not feel free to disregard the officer and walk away. A stop may be conducted only when a police officer has an individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a felony or Penal Law misdemeanor. A frisk is defined as carefully limited running of the hands over the outside of a person's clothing feeling for a deadly weapon or any instrument, article or substance readily capable of causing serious physical injury. A frisk is authorized when the member of the service reasonably suspects the person is armed and dangerous. A frisk may not be conducted to locate evidence of a crime, such as drugs, NYPD Patrol Guide Procedure 212-11 (BR 12). During a lawful vehicle stop, an officer may conduct a warrantless search of a vehicle and its occupants if that officer detects the odor of marijuana, People v. Chestnut, 43 A.D.2d 260 (1974) (BR 13).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation I—Abuse of Authority: Police Officer Timothy Commander failed to provide § 87(2)(b) with a business card.

Allegation K—Abuse of Authority: Lieutenant Brian Schulman failed to provide § 87(2)(b) with a business card.

BWC shows that § 87(2)(b) and § 87(2)(b) were not provided with business cards by any officers and did not alternatively provide their names or shield numbers.

PO Panetta and PO Cruz did not remember if they provided their business cards. PO Commander and Lt. Schulman acknowledged that he did not provide his business card to § 87(2)(b) or § 87(2)(b).

During a law enforcement activity, including 2) pedestrian stops where an officer has an individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime and where a reasonable person would not feel free to end the encounter at will; 3. Frisks; and 4. Searches of persons or property, including vehicles; an officer shall: 1. Identify himself or herself to the person who is the subject of such law enforcement activity by providing his or her name, rank and command; 2. Provide to such person an explanation of the reason for such law enforcement activity, unless providing such information would impair a criminal investigation; 3. Offer a business card to such person at the conclusion of any such activity that does not result in an arrest or summons, NYC Administrative Code 14-174 (BR 14).

§ 87(2)(g)
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§ 87(2)(g)
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§ 87(2)(g), § 87(4-b)
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§ 87(2)

(a) §

87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one CCRB complaint and has been named as a victim in three allegations (**BR 15**):
 - § 87(2)(b)
- § 87(2)(b) has been party to one CCRB complaint and has been named as a victim in two allegations (**BR 16**):
 - § 87(2)(b)
- Lt. Schulman has been a member-of-service for 16 years has been a subject in 12 CCRB complaints and 30 allegations, of which three were substantiated:
 - Case #201305459 involved a substantiated allegation of discourteous language against Lt. Schulman. The Board recommended instructions and the NYPD imposed instructions.
 - Case #201400712 involved a substantiated allegation of frisk against Lt. Schulman. The Board recommended formalized training and the NYPD imposed instructions.
 - Case #201910390 involved a substantiated allegation of seizure of property against Lt. Schulman. The Board recommended charges and the NYPD has not yet imposed discipline.
 - § 87(2)(g)
- PO Commander has been a member-of-service for six years has been a subject in one CCRB complaints and one allegation, which was not substantiated. § 87(2)(g)
- PO Panetta has been a member-of-service for seven years has been a subject in one CCRB complaints and four allegations. Case #202007098 is pending investigation. § 87(2)(g)
- PO Cruz has been a member-of-service for six years has been a subject in four CCRB complaints and ten allegations. Case #202007098, Case #202101337, Case #202102154, and Case #202200401 are pending investigation. § 87(2)(g)

- [§ 87(2)(b)] declined to mediate this complaint.
- As of April 15, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**BR 17**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Reviewer: _____

Signature	Print Title & Name	Date
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